



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 27 judgments and / or decisions on Tuesday 28 May 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 28 May 2019

[Clasens v. Belgium \(application no. 26564/16\)](#)

The applicant, John Clasens, is a Belgian national who was born in 1983. He is detained at Ittre Prison (Belgium) serving a final criminal sentence.

The case concerns Mr Clasens' conditions of detention in Ittre Prison, during a strike by prison officers between April and June 2016.

Mr Clasens submits that he was held in conditions of detention incompatible with Article 3 (prohibition of inhuman or degrading treatment) of the European Convention on Human Rights on account of the strike. He also complains, under Article 13 (right to an effective remedy), that he had no access to an effective remedy.

[Liblik and Others v. Estonia \(nos. 173/15, 181/15, 374/15, 383/15, 386/15, and 388/15\)](#)

The applicants are four Estonian nationals, Tullio Liblik, Kalev Kangur, Toomas Annus, and Villu Reiljan, who were born in 1964, 1968, 1960, and 1953 respectively and live in Kuressaare (Mr Liblik), Tallinn (Mr Kangur and Mr Annus), and Palamuse county (Mr Reiljan) (all in Estonia), and two public limited liability companies, E.L.L. Kinnisvara AS and AS Järvevana, incorporated under Estonian law and based in Tallinn.

The case concerns the retrospective justification of secret surveillance authorisations issued in the context of criminal proceedings against the applicants. It also concerns the length of those criminal proceedings.

Between August 2005 and October 2006 the Internal Security Service (*Kaitsepolitsei*) carried out surveillance activities on the first, second and third applicant, who was also acting as a member of the supervisory board of the two applicant companies. In the course of those activities, the police intercepted and listened to communications between the fourth applicant and the people under surveillance. The criminal charges concerned suspicions of high-level corruption over the exchange of plots of land in conservation areas for plots in areas where development was permitted.

During the pre-trial proceedings, the second applicant discovered a surveillance device in his office in September 2005. The authorities also searched the offices of the first and third applicant and the two applicant companies. In October 2007 the fourth applicant was questioned as a suspect. Altogether, the pre-trial proceedings lasted three and a half years.

Court proceedings began in May 2009, leading to the applicants being acquitted in June 2012. The court found that the surveillance activities had been unlawful and that all the evidence collected was inadmissible. The court proceedings lasted three years and three months.

However, that decision was reversed on appeal in June 2013 and all the applicants were convicted. The appeal court found that the surveillance had been lawful and the evidence thus admissible.

All the applicants lodged appeals on points of law with the Supreme Court, which in June 2014 upheld the convictions. It held that the trial, although close to being excessively lengthy, had still been concluded within a reasonable time. It further found that the relevant regulation on secret surveillance was constitutional and that its conditions had been fulfilled.

Relying on Article 6 § 1 (right to a fair trial within a reasonable time) of the European Convention, the applicants complain of the excessive length of the proceedings. Relying on Article 8 (right to respect for private life and correspondence), the second and the third applicants and the applicant companies allege that the retrospective justification of the secret surveillance authorisations had violated their rights.

[Zammit and Vassallo v. Malta \(no. 43675/16\)](#)

The applicants, Anthony Zammit, Josephine Mary Vassallo, Carmelo Zammit, Jane Zammit, Maria Theresa Zammit, Mary Zammit, and Stephen Zammit, are Maltese nationals who were born in 1947, 1957, 1936, 1934, 1931, 1939, and 1962 respectively and live in Tarxien (Anthony Zammit and Stephen Zammit), Birkirkara (Josephine Mary Vassallo), Balzan (Carmelo Zammit), and Paola (Jane Zammit, Maria Theresa Zammit, and Mary Zammit) (all in Malta).

The case concerns the applicants' complaint of a lack compensation for the demolition and successive takings of their property under various titles.

The Maltese authorities took over the applicants' property in April 1989 and sometime later it was demolished. In October 1989 the property was taken over under title of possession and use and in 1991 under title of public tenure.

In 1999 the Commissioner of Land offered approximately 36.39 euros (EUR) per year in rent for the property, but the applicants refused. Subsequent proceedings before the Land Arbitration Board (LAB) did not end until March 2012, when the LAB set a fixed rental rate of EUR 158.40 a year.

Subsequent constitutional redress proceedings, held at first instance and on appeal, ended in February 2016.

The Constitutional Court ruled that when the demolition had occurred it had been unlawful, however, that unlawfulness had been sanctioned when the State had acquired the property under title of public tenure. However, a breach of the applicants' property rights had occurred since no compensation had been paid since 1989. It awarded EUR 1,500 in respect of non-pecuniary damage, lower than the sum determined by the first-instance court.

Relying on Article 1 of Protocol No. 1 (protection of property) to the Convention, the applicants complain that they suffered *de facto* expropriation by the Maltese government and that the redress provided by the courts did not redress the damage they had suffered.

[Chaldayev v. Russia \(no. 33172/16\)](#)

The applicant, Artur Rinatovich Chaldayev, is a Russian national who was born in 1986. He is currently detained in Ruzayevka. The case concerns the length of his pre-trial detention and the conditions governing his right to access, in particular the fact that he could have no physical contact with his relatives during their visits.

On 24 January 2013 Mr Chaldayev, who was suspected of involvement in armed robbery, was charged with the corresponding offence. On 18 May 2015 he was sentenced to thirteen years' imprisonment. He appealed.

On 1 June 2015 Mr Chaldayev's parents requested authorisation to visit their son. The judge dismissed their request on the grounds that the parents had already been granted a visit shortly beforehand. They complained about that decision to the President of the court, but their complaint was dismissed.

On 10 August 2015 Mr Chaldayev requested authorisation to receive a visit from his parents. His request was dismissed, no reasons being given for that decision. On 5 October 2015 the parents lodged two requests for authorisation to visit their son with the Supreme Court of the Republic of Mordovia. The Supreme Court dismissed their requests.

On 11 October 2015 Mr Chaldayev lodged a complaint with the Prosecutor of the Republic of Mordovia complaining about the small number and short duration of the visits which he had received in prison. The visits had taken place in a room with a partition wall preventing any physical contact between the prisoner and his visitors, and he had only been able to talk to his parents by using a phone, which was tapped by the prison officers.

On 29 October 2015 Mr Chaldayev's conviction became final, and on 27 November 2015 he was transferred to a correctional colony to serve his prison sentence.

Relying on Article 8 (right to private and family life), the applicant complains of a violation of his right to respect for his private and family life on account of the limited number of visits by his parents to remand prison no. IZ-13/1 and the rules on such visits. He also complains that he was unable to have any physical contact with his relatives and that the phone he used to talk to them was tapped.

[Forcadell i Lluís and Others v. Spain \(no. 75147/17\)](#)

The applicants are 76 Spanish nationals who live in Barcelona. The case concerns the Constitutional Court's decision to suspend the plenary sitting of the Parliament of the Autonomous Community of Catalonia on 9 October 2017.

On 1 October 2017 an unauthorised referendum was held to decide on Catalonia's secession from Spanish territory. On 4 October 2017 two parliamentary groups (representing 56.3% of all seats in Parliament) requested that the Bureau of the Parliament of Catalonia convene a plenary sitting of Parliament, during which the President of the Government of Catalonia was to have assessed the results of the 1 October referendum and the effects of those results, pursuant to section 4 of Law no. 19/2017 on "the self-determination referendum". The Bureau granted the request, and the meeting was programmed for 10 a.m. on 9 October. Three other parliamentary groups (representing 43.7 % of the seats) contested the convening of that sitting on the grounds that it would infringe the Rules of the Parliament of Catalonia. Sixteen socialist MPs applied to the Constitutional Court for the issuing of an interim measure suspending the plenary sitting. The Constitutional Court declared the application admissible and ordered the provisional suspension of the plenary sitting. On 26 April 2018 the Constitutional Court, judging on the merits, observed that the procedure followed by the Bureau of the Parliament to convene the plenary sitting had disregarded the provisional suspension of Law no. 19/2017 declared by the Constitutional Court on 7 September 2017 and had prevented the complainant MPs from discharging their duties. The Constitutional Court pointed out that it was the task of the Parliament of Catalonia to represent the whole population and not merely specific political factions, even if the latter represented the majority.

Relying on Article 10 (freedom of expression) read in conjunction with Article 11 (freedom of assembly and association) of the Convention, and Article 3 of Protocol No. 1 (right to free elections), the applicants complain that the Constitutional Court's decision to suspend the convening of the plenary sitting amounts to a violation of their rights as secured under those articles inasmuch as they were prevented from expressing the will of the voters having participated in the referendum of 1 October 2017. Relying on Article 6 (right to a fair trial), the applicants submit that neither the Parliament nor they themselves had had access to a court to put forward their grievances.

[Fraile Iturralde v. Spain \(no. 66498/17\)](#)

The applicant, Jorge Fraile Iturralde, is a Spanish national who was born in 1970. He has been serving a 25-year prison sentence since 1998 for collaboration with a terrorist organisation, the Basque separatist movement ETA. He has been held in Badajoz Prison since June 2010.

The case concerns his complaint about the refusal of his request for a transfer to a prison closer to his family.

In 2016 the applicant lodged a complaint with the domestic courts about a decision to maintain his placement in Badajoz Prison under a close custody regime. He complained in particular that the prison authorities had refused to allow him to serve his sentence nearer to his family's place of residence, in Durango. He submitted that the 700 kilometre trip from Durango to Badajoz was difficult for his wife and five-year-old daughter. His parents, who were advanced in age, were unable to visit him at all.

His complaints were dismissed the same year after being examined at two levels, namely the Central Supervision Court at first instance and the *Audiencia Nacional* on appeal.

The courts essentially found that a departure from the general rule that prisoners should be held in facilities close to family and friends had been justified by general prison policy on convicted terrorists, his disruptive behaviour and continued allegiance to ETA in prison, as well as prison reports attesting to the fact that he had had regular contact with close relatives and friends.

An *amparo* appeal with the Constitutional Court was declared inadmissible in 2017. Endorsing the lower courts' findings, it held that the case did not disclose any appearance of a violation of the rights subject to such appeals.

The applicant complains that the refusal of his request for a transfer to a prison closer to his family breached his rights under Article 8 (right to respect for family life). He also relies on Article 6 § 1 (access to court) to complain that the Constitutional Court decision was arbitrary and excessively formalistic.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Name	Main application number
Consocivil S.A. and Zelinski v. the Republic of Moldova	27773/05
Construct Confort S.R.L. v. the Republic of Moldova	16974/15
van de Kolk v. the Netherlands	23192/15
Dzhabrailova and Others v. Russia	3752/13
Isayeva and Others v. Russia	53075/08
Kabanov v. Russia	17506/11
Khamkhoyeva and Others v. Russia	6636/09
Samoylov v. Russia	1750/11
Sidorova v. Russia	35722/15
Skorobogatova v. Russia	47537/11
Udut v. Russia	1115/10
Yegorov and Others v. Russia	77208/16
Yermakovich v. Russia	35237/14
Okilj v. Serbia	16019/15
Greňová v. Slovakia	26147/15
Lonský v. Slovakia	45784/15
Nerušíl v. Slovakia	37016/15

Name	Main application number
Puškárová v. Slovakia	19356/14
Dağtekin v. Turkey	69448/10
Dağtekin v. Turkey	33513/11
Taş Çakar v. Turkey	73487/12

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.